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BRIEFWISE General Answer

BriefWise is ready. Please provide the task, question, or document you want addressed.

A draft summary-judgment brief relies heavily on a published appellate case for the proposition that the plaintiff's evidence is legally insufficient. The case appears factually similar and comes from the correct jurisdiction.

However, the record also contains:

* a later appellate decision that discusses the same earlier case but may narrow its application;
* a quotation from the earlier case that is accurate, but may come from a discussion of a different procedural posture;
* several factual assertions in the draft that are supported only by deposition summaries, not the cited transcript pages; and
* one secondary source stating that the earlier case remains "good law," without showing whether negative treatment was checked.

Review the draft position as BriefWise would.

Determine whether the proposition may remain in a filing-ready brief, and identify separately:

1. whether the cited case exists and is binding;
2. whether the quoted language is accurate;
3. whether the case actually supports the proposition at the present procedural posture;
4. whether the later appellate decision changes, limits, or creates uncertainty about that support;
5. whether the factual record adequately supports the draft's characterization of the evidence;
6. what remains unresolved;
7. what must be verified or corrected before the proposition can be used in a filing-ready draft.

Do not invent holdings, treatment, transcript testimony, procedural facts, or missing authorities. Do not assume that "good law" means the proposition remains valid for this use. Distinguish citation validity, quote fidelity, authority treatment, proposition support, procedural alignment, and record support as separate issues.

If any required verification cannot be completed from the supplied materials, state:

UNRESOLVED — verification required

Conclude with:

FilingReady: Yes / No / Not yet determinable

and explain the specific blocker or blockers.

BRIEFWISE Unavailable

Status

The earlier case may remain as a **research lead or qualified draft argument**, but the proposition cannot remain in a filing-ready brief in its present form. Citation validity, quote fidelity, precedential treatment, procedural alignment, proposition support, and record support require separate review.

UNRESOLVED — verification required

1. Case existence and binding status

The supplied description states that the earlier decision is published, appellate, and from the correct jurisdiction. That suggests potential binding authority, but it does not establish:

- the case's correct citation and authenticity;
- which court issued it;
- whether that court binds the court hearing the present motion;
- whether the relevant language is a holding rather than dicta;
- whether rehearing, en banc review, amendment, vacatur, or later history affects the opinion; or
- whether an intervening statute, rule, or higher-court decision displaced its reasoning.

The secondary source's statement that the case remains "good law" does not verify these matters or establish that the particular proposition remains controlling.

Finding: Existence and binding status are not verified from the supplied materials.

UNRESOLVED — verification required

2. Quote fidelity

The supplied facts state that the quotation is accurate. On that limited basis, the wording may be textually faithful to the earlier opinion.

That does not establish contextual fidelity. The complete passage, surrounding discussion, factual setting, qualifications, citations, and procedural posture must be examined. An exact quotation can still be misleading if presented as governing summary judgment when the court made the statement under a different standard.

Finding: Textual accuracy is represented as established, but source and contextual verification remain necessary.

UNRESOLVED — verification required

3. Proposition support and procedural alignment

It cannot presently be determined whether the earlier case supports the proposition that the plaintiff's evidence is legally insufficient **at summary judgment**.

The relevant questions include:

- What procedural posture governed the earlier decision?
- What evidentiary burdens applied?
- Was the court reviewing a pleading, summary-judgment record, directed verdict, judgment after trial, evidentiary ruling, or another disposition?
- Did the court weigh evidence or credibility in a manner unavailable at summary judgment?
- Was the court addressing admissibility, legal sufficiency, burden shifting, causation, or merely the weight of evidence?
- Are the material facts and governing substantive elements materially comparable?
- Does the quoted passage state the governing rule, apply that rule, or merely describe a party's argument?

A quotation from a trial or post-trial sufficiency analysis cannot automatically be transferred to summary judgment. Likewise, a pleading-stage conclusion may not establish that evidence is insufficient after discovery.

Finding: Procedural alignment and proposition support have not been established.

UNRESOLVED — verification required

4. Effect of the later appellate decision

The later decision is material because it discusses the earlier case and may narrow its application. It must be analyzed independently rather than treated merely as generic "negative treatment."

The review must determine whether the later decision:

- distinguishes the earlier case only on its facts;
- confines it to a particular procedural posture;
- limits the relevant language to a narrower proposition;
- characterizes that language as dicta;
- rejects an expansive reading of the earlier case;
- modifies the governing legal standard;
- follows the earlier case but identifies conditions absent from the present matter;
- is from a superior, coordinate, or nonbinding court; or
- creates an unresolved conflict within the jurisdiction.

Until that analysis is completed, the earlier decision cannot responsibly be cited as unqualified support. If the later case materially limits the proposition, the brief must disclose and address it rather than cite only the earlier authority.

Finding: The later decision creates a material treatment question that has not been resolved.

UNRESOLVED — verification required

5. Record support for the draft's factual characterization

The factual assertions are not adequately supported merely because deposition summaries describe the testimony. A summary is not a substitute for confirming the cited transcript pages, particularly where the argument asserts that the evidence is legally insufficient.

The underlying transcript must be checked for:

- the witness's exact testimony;
- qualifications, corrections, or explanations on adjacent pages;
- whether the cited testimony is based on personal knowledge;
- objections or admissibility problems;
- errata or later corrections;
- testimony elsewhere in the deposition that conflicts with the summary;
- whether the draft accurately characterizes testimony or draws an inference from it; and
- whether other record evidence creates a genuine factual dispute.

Each material assertion should cite the particular record material that supports it. If the deposition summaries are attorney work product or informal internal summaries rather than evidence submitted with the motion, they ordinarily cannot themselves establish the asserted facts.

Finding: The present citations do not establish adequate record support for the draft's factual characterization.

UNRESOLVED — verification required

6. Matters that remain unresolved

The current materials do not establish:

1. the complete citation, court, date, and precedential status of either appellate decision;
2. the earlier decision's subsequent history and current treatment;
3. the hierarchy and binding force of the later decision;
4. the full context and status—holding or dicta—of the quoted language;
5. the procedural posture and governing standard in the earlier case;
6. whether that standard matches the present summary-judgment posture;
7. whether the later decision distinguishes, limits, rejects, or otherwise narrows the asserted proposition;
8. whether additional controlling authority addresses the same issue;
9. the exact deposition testimony supporting each material factual statement;
10. whether contrary or qualifying testimony appears elsewhere in the record;
11. whether the cited evidence is admissible or can be presented in admissible form; and
12. whether the draft applies the jurisdiction's current summary-judgment standard correctly.

7. Required verification and corrections

Before using the proposition in a filing-ready draft:

1. **Verify both opinions from authoritative sources.** Confirm citations, opinion status, amendments, subsequent history, and court hierarchy.
2. **Conduct current treatment research.** Review all material negative and limiting treatment, not merely a secondary source's "good law" label.
3. **Read the full relevant portions of both decisions.** Determine the operative holdings, factual predicates, procedural postures, and limitations.
4. **Reassess the quotation in context.** Retain it only if the brief accurately identifies the issue and posture to which it applies.
5. **Determine the later decision's effect.** If it limits the earlier authority, narrow the proposition accordingly and cite and address the later case.
6. **Verify procedural alignment.** Explain why the earlier decision's standard applies at summary judgment

The connection ended before the answer completed.

A draft summary-judgment brief relies heavily on a published appellate case for the proposition that the plaintiff's evidence is legally insufficient. The case appears factually similar and comes from the correct jurisdiction.

However, the record also contains:

* a later appellate decision that discusses the same earlier case but may narrow its application;
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* several factual assertions in the draft that are supported only by deposition summaries, not the cited transcript pages; and
* one secondary source stating that the earlier case remains "good law," without showing whether negative treatment was checked.

Review the draft position as BriefWise would.

Determine whether the proposition may remain in a filing-ready brief, and identify separately:

1. whether the cited case exists and is binding;
2. whether the quoted language is accurate;
3. whether the case actually supports the proposition at the present procedural posture;
4. whether the later appellate decision changes, limits, or creates uncertainty about that support;
5. whether the factual record adequately supports the draft's characterization of the evidence;
6. what remains unresolved;
7. what must be verified or corrected before the proposition can be used in a filing-ready draft.

Do not invent holdings, treatment, transcript testimony, procedural facts, or missing authorities. Do not assume that "good law" means the proposition remains valid for this use. Distinguish citation validity, quote fidelity, authority treatment, proposition support, procedural alignment, and record support as separate issues.

If any required verification cannot be completed from the supplied materials, state:

UNRESOLVED — verification required

Conclude with:

FilingReady: Yes / No / Not yet determinable

and explain the specific blocker or blockers.

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BRIEFWISE
Unavailable
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The earlier case may remain as a research lead or qualified draft argument, but the proposition cannot remain in a filing-ready brief in its present form. Citation validity, quote fidelity, precedential treatment, procedural alignment, proposition support, and record support require separate review.

UNRESOLVED — verification required

1. Case existence and binding status
The supplied description states that the earlier decision is published, appellate, and from the correct jurisdiction. That suggests potential binding authority, but it does not establish:

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which court issued it;
whether that court binds the court hearing the present motion;
whether the relevant language is a holding rather than dicta;
whether rehearing, en banc review, amendment, vacatur, or later history affects the opinion; or
whether an intervening statute, rule, or higher-court decision displaced its reasoning.
The secondary source's statement that the case remains "good law" does not verify these matters or establish that the particular proposition remains controlling.

Finding: Existence and binding status are not verified from the supplied materials.

UNRESOLVED — verification required

2. Quote fidelity
The supplied facts state that the quotation is accurate. On that limited basis, the wording may be textually faithful to the earlier opinion.

That does not establish contextual fidelity. The complete passage, surrounding discussion, factual setting, qualifications, citations, and procedural posture must be examined. An exact quotation can still be misleading if presented as governing summary judgment when the court made the statement under a different standard.

Finding: Textual accuracy is represented as established, but source and contextual verification remain necessary.

UNRESOLVED — verification required

3. Proposition support and procedural alignment
It cannot presently be determined whether the earlier case supports the proposition that the plaintiff's evidence is legally insufficient at summary judgment.

The relevant questions include:

What procedural posture governed the earlier decision?
What evidentiary burdens applied?
Was the court reviewing a pleading, summary-judgment record, directed verdict, judgment after trial, evidentiary ruling, or another disposition?
Did the court weigh evidence or credibility in a manner unavailable at summary judgment?
Was the court addressing admissibility, legal sufficiency, burden shifting, causation, or merely the weight of evidence?
Are the material facts and governing substantive elements materially comparable?
Does the quoted passage state the governing rule, apply that rule, or merely describe a party's argument?
A quotation from a trial or post-trial sufficiency analysis cannot automatically be transferred to summary judgment. Likewise, a pleading-stage conclusion may not establish that evidence is insufficient after discovery.

Finding: Procedural alignment and proposition support have not been established.

UNRESOLVED — verification required

4. Effect of the later appellate decision
The later decision is material because it discusses the earlier case and may narrow its application. It must be analyzed independently rather than treated merely as generic "negative treatment."

The review must determine whether the later decision:

distinguishes the earlier case only on its facts;
confines it to a particular procedural posture;
limits the relevant language to a narrower proposition;
characterizes that language as dicta;
rejects an expansive reading of the earlier case;
modifies the governing legal standard;
follows the earlier case but identifies conditions absent from the present matter;
is from a superior, coordinate, or nonbinding court; or
creates an unresolved conflict within the jurisdiction.
Until that analysis is completed, the earlier decision cannot responsibly be cited as unqualified support. If the later case materially limits the proposition, the brief must disclose and address it rather than cite only the earlier authority.

Finding: The later decision creates a material treatment question that has not been resolved.

UNRESOLVED — verification required

5. Record support for the draft's factual characterization
The factual assertions are not adequately supported merely because deposition summaries describe the testimony. A summary is not a substitute for confirming the cited transcript pages, particularly where the argument asserts that the evidence is legally insufficient.

The underlying transcript must be checked for:

the witness's exact testimony;
qualifications, corrections, or explanations on adjacent pages;
whether the cited testimony is based on personal knowledge;
objections or admissibility problems;
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testimony elsewhere in the deposition that conflicts with the summary;
whether the draft accurately characterizes testimony or draws an inference from it; and
whether other record evidence creates a genuine factual dispute.
Each material assertion should cite the particular record material that supports it. If the deposition summaries are attorney work product or informal internal summaries rather than evidence submitted with the motion, they ordinarily cannot themselves establish the asserted facts.

Finding: The present citations do not establish adequate record support for the draft's factual characterization.

UNRESOLVED — verification required

6. Matters that remain unresolved
The current materials do not establish:

the complete citation, court, date, and precedential status of either appellate decision;
the earlier decision's subsequent history and current treatment;
the hierarchy and binding force of the later decision;
the full context and status—holding or dicta—of the quoted language;
the procedural posture and governing standard in the earlier case;
whether that standard matches the present summary-judgment posture;
whether the later decision distinguishes, limits, rejects, or otherwise narrows the asserted proposition;
whether additional controlling authority addresses the same issue;
the exact deposition testimony supporting each material factual statement;
whether contrary or qualifying testimony appears elsewhere in the record;
whether the cited evidence is admissible or can be presented in admissible form; and
whether the draft applies the jurisdiction's current summary-judgment standard correctly.
7. Required verification and corrections
Before using the proposition in a filing-ready draft:

Verify both opinions from authoritative sources. Confirm citations, opinion status, amendments, subsequent history, and court hierarchy.
Conduct current treatment research. Review all material negative and limiting treatment, not merely a secondary source's "good law" label.
Read the full relevant portions of both decisions. Determine the operative holdings, factual predicates, procedural postures, and limitations.
Reassess the quotation in context. Retain it only if the brief accurately identifies the issue and posture to which it applies.
Determine the later decision's effect. If it limits the earlier authority, narrow the proposition accordingly and cite and address the later case.
Verify procedural alignment. Explain why the earlier decision's standard applies at summary judgment
The connection ended before the answer completed.

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BRIEFWISE Research Answer

7. Required verification and corrections — continued

Before using the proposition in a filing-ready draft:

1. **Verify procedural alignment.** Explain why the earlier decision's legal standard applies at summary judgment. If the earlier decision arose under a materially different posture, revise or remove the proposition unless another authority establishes the required connection.

1. **Separate the rule from its application.** Identify precisely:

- the rule actually adopted by the earlier court;

- the facts the court considered material;

- the procedural standard governing its decision; and

- the extent to which the present record satisfies the same conditions.

1. **Address the later appellate decision.** Determine its hierarchical status and whether it distinguishes, confines, limits, criticizes, or supersedes the earlier decision's reasoning. If material, the later decision must be disclosed and fairly addressed. The brief should not present the earlier case as unqualified authority if later precedent requires a narrower formulation.

1. **Replace summary-based factual assertions with record citations.** Review the underlying deposition transcripts and cite the exact pages and lines supporting each material assertion. Confirm that the summaries do not omit qualifications, corrections, conflicting testimony, or surrounding context.

1. **Confirm evidentiary usability.** Determine whether the cited material is admissible or capable of being presented in admissible form under the governing summary-judgment rules. Internal deposition summaries should not be cited as substitutes for the underlying record unless independently admissible and properly included in the record.

1. **Review the complete summary-judgment record.** Determine whether other testimony, declarations, documents, expert material, or permissible inferences contradict the draft's characterization. Evidence cannot be labeled legally insufficient merely because selected excerpts favor the movant.

1. **Correct the draft's characterization.** Distinguish among:

- what the witness expressly testified;

- what the deposition summary says;

- what counsel infers from the testimony; and

- the legal conclusion that the evidence is insufficient.

1. **Revise the proposition if necessary.** Depending on the verification results, the brief may need to:

- narrow the proposition;

- qualify it by procedural posture or factual conditions;

- cite both appellate decisions;

- use the earlier case only as persuasive analogy rather than direct support;

- add current controlling authority; or

- remove the proposition entirely.

1. **Do not rely on the "good law" statement alone.** Confirm current history and treatment through authoritative sources and review the decisions supplying any negative, limiting, distinguishing, or superseding treatment. "Good law" may mean only that the decision has not been formally overruled; it does not establish that every proposition or quotation remains valid for the present use.

UNRESOLVED — verification required

Conclusion

The earlier case may remain in the working draft as a research lead or expressly qualified argument. It cannot presently serve as unqualified, filing-ready support for the proposition that the plaintiff's evidence is legally insufficient.

The specific blockers are:

- the earlier case's binding and precedential status has not been fully verified;
- the quotation's contextual fidelity has not been established, despite its represented textual accuracy;
- the earlier case's procedural posture may not align with summary judgment;
- the later appellate decision may limit or narrow the asserted proposition;
- current treatment has not been adequately checked;
- the underlying deposition pages have not been verified;
- the draft's material factual assertions rely on summaries rather than confirmed record evidence; and
- the complete record has not been reviewed for qualifying or contradictory evidence.

FilingReady: No

That determination applies to the proposition in its present form. Whether the proposition can be retained after correction is **not yet determinable** and depends on the authority, treatment, procedural-posture, and record verification described above.

In a public-safe manner, how does Deterministic Intelligence / BriefWise help answer the prior question?

BRIEFWISE Research Answer

Deterministic Intelligence / BriefWise helps by applying a **controlled legal-review framework** rather than treating a plausible citation as sufficient support.

For the prior question, BriefWise would:

- **Decompose the issue:** Separately evaluate citation validity, binding status, quotation accuracy, contextual fidelity, procedural alignment, subsequent treatment, proposition support, and record support.
- **Preserve evidentiary distinctions:** Keep deposition testimony, attorney summaries, factual inferences, and legal conclusions in their proper categories.
- **Prevent unsupported conclusions:** Mark missing authority, transcript pages, procedural facts, and treatment research as **"UNRESOLVED — verification required"** rather than filling gaps by assumption.
- **Test procedural fit:** Determine whether language from another posture can properly support a summary-judgment argument.
- **Account for later authority:** Require analysis of the later appellate decision instead of relying on a generalized "good law" label.
- **Check record grounding:** Require material factual assertions to be tied to the actual record, including relevant context and potentially conflicting evidence.
- **Provide an actionable release decision:** Identify what can remain, what must be qualified or removed, and the specific blockers to filing readiness.
- **Support attorney review:** Produce a disciplined draft assessment and verification checklist without representing the result as attorney-approved, treatment-checked, or filing-ready unless those separate reviews actually occurred.

In short, BriefWise is designed to convert a superficially strong argument into a structured legal-support assessment: **What is supported, what is merely plausible, what remains unresolved, and what must be corrected before filing.**

Ask BriefWise anything...

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